

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202208246	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 11/27/2022 2:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/27/2024	Precinct: 69		
Date/Time CV Reported Thu, 12/01/2022 8:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 12/01/2022 8:03 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Matthew Flynn	03385	953870	069 PCT
2. DTS Daniel Donaldson	04772	920223	ESS 07
3. SGT Mark Sinatra	04720	944174	ESS 07
4. CPT Mo Tsang	00000	947864	072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jude Dorema	03068	948910	069 PCT
2. PO Shirley Pena	05783	973137	069 PCT
3. PO Ahmad Brannon	08620	936238	069 PCT
4. PO Michael Magnante	23112	969186	069 PCT
5. PO Camil Jezewski	23065	969133	069 PCT
6. PO Natalya Kim	22933	962526	069 PCT
7. PO Darren Zhumi	11346	966410	069 PCT
8. DTS Adam Geslak	02978	950488	ESS 07
9. PO Daniel Oh	02508	953195	ESS 07
10. PO Vincent Affatigato	01103	970369	069 PCT
11. DTS Matthew Granahan	04480	926899	ESS 07
12. PO David Wu	06465	964845	069 PCT
13. PO Nicholas Baldeo	17659	969504	069 PCT
14. DI Adeel Rana	00000	935565	084 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Matthew Flynn	Abuse: Sergeant Matthew Flynn entered § 87(2)(b) § 87(2)(b), in Brooklyn.	A . Within NYPD Guidelines
B . DTS Daniel Donaldson	Discourtesy: Detective Daniel Donaldson spoke discourteously to § 87(2)(b) § 87(2)(b)	B . Miscellaneous - Subject Retired
C . SGT Mark Sinatra	Abuse: Sergeant Mark Sinatra damaged § 87(2)(b) § 87(2)(b)s property.	C . Within NYPD Guidelines
D . CPT Mo Tsang	Abuse: Captain Mo Tsang entered § 87(2)(b) § 87(2)(b), in Brooklyn.	D . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
E . SGT Mark Sinatra	Abuse: Sergeant Mark Sinatra searched § 87(2)(b) in Brooklyn.	E . Within NYPD Guidelines
F . CPT Mo Tsang	Abuse: Captain Mo Tsang improperly used his body-worn camera.	F . Substantiated

Case Summary

On December 1, 2022, § 87(2)(b) filed this complaint with the CCRB online.

On November 27, 2022, at approximately 2:10 p.m., inside of § 87(2)(b) in Brooklyn, § 87(2)(b) had an interaction with § 87(2)(b) the property manager of his building, which resulted in her calling 911 to report that § 87(2)(b) assaulted her. Sgt. Michael Flynn, PO Ahmed Brannon, PO Jude Dorema, PO Shirley Pena, PO Michael Magnante, and PO Camil Jezewski of the 69th Precinct arrived at the location and spoke to § 87(2)(b) who then escorted the officers into the second-floor kitchen of the two-family home. Officers spoke to § 87(2)(b) through his locked door, and he refused to come out. Sgt. Flynn asked § 87(2)(b) for the key and entered § 87(2)(b)'s private unit (**Allegation A: Abuse of Authority, within NYPD guidelines**). § 87(2)(b) retreated to the bedroom in the back of his unit and locked the door.

Sgt. Flynn requested Emergency Services Unit and a duty captain to the location. Several ESU officers arrived, including Det. Daniel Donaldson of Emergency Services Squad 7 who spoke to § 87(2)(b) through his locked door. During the interaction, Det. Donaldson told § 87(2)(b) to “Shut the fuck up” (**Allegation B: Discourtesy, miscellaneous – subject retired**).

Captain Mo Tsang of the 72nd Precinct arrived and conferred with Sgt. Flynn. ESU supervisor, Sergeant Mark Sinatra, arrived approximately thirty minutes later and broke a hole into § 87(2)(b)'s door to gain a visual (**Allegations C: Abuse of Authority, within NYPD guidelines**). ESU officers forced the door open, and Det. Donaldson and Det. Adam Geslak of Emergency Services Unit Squad 7 entered the room and brought § 87(2)(b) out (**Allegation D: Abuse of Authority, within NYPD guidelines**). Det. Donaldson and Det. Geslak searched the closet and under the bed (**Allegation E: Abuse of Authority, within NYPD guidelines**). § 87(2)(b) was arrested and brought to § 87(2)(b). Captain Tsang failed to activate his body-worn camera (**Allegation F: Abuse of Authority, substantiated**).

§ 87(2)(b) was arrested for § 87(2)(b) (BR 01).

The investigation obtained 20 body-worn camera videos from officers from the 69th Precinct and officers from Emergency Services Squad 7 (**BR 02: videos, BR 03, BR 04, BR 05, BR 06, BR 07, BR 08, BR 09, BR 10, and BR 11, summaries**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Matthew Flynn entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Sergeant Mark Sinatra damaged § 87(2)(b)'s property.

Allegation (D) Abuse of Authority: Captain Mo Tsang entered § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Sergeant Mark Sinatra searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

§ 87(2)(b) stated (**BR 12**) he was in the common kitchen area of his residence on the second floor, pulling something out of the oven when § 87(2)(b) came inside and shut the oven door. § 87(2)(b) called 911 and told the operator that § 87(2)(b) had hit her. § 87(2)(b) started to leave, and as § 87(2)(b) was closing the door, § 87(2)(b) elbowed him in the face. § 87(2)(b) was still on the phone with 911, so § 87(2)(b) attempted to tell the 911 operator that she just elbowed him in the face and asked that they do not send officers. § 87(2)(b) started to go inside his private unit which consisted of a bedroom in the rear and a front room which had a door that attached to the kitchen. § 87(2)(b) charged

towards him § 87(2)(b) so he pushed her off him, went into his private unit, and called 311, 911, and his attorney.

§ 87(2)(b) who is the property manager of § 87(2)(b)'s residence stated (BR 13) that a tenant, § 87(2)(b) texted her that § 87(2)(b) was acting erratic by opening every window, turning on the oven, turning on the exhaust, and keeping on all the lights. § 87(2)(b) arrived at the location and all the windows were open, and the oven was on. § 87(2)(b) attempted to turn the oven off and close the door. § 87(2)(b) ran out of his room and started to loudly scream and curse at § 87(2)(b). § 87(2)(b) reached for the knife that was in the sink but did not grab it.

§ 87(2)(b) attempted to leave, and § 87(2)(b) prevented her from leaving by sticking his arm out. § 87(2)(b) hit § 87(2)(b) arm with the handle of a dumbbell that had no weights attached to it and pushed her into the refrigerator causing it to slide into the window. § 87(2)(b) called 911 and § 87(2)(b) screamed at her. § 87(2)(b) called 911 a second time and the operator told her that the police were on their way. The downstairs tenant and § 87(2)(b) husband started to come upstairs, and § 87(2)(b) ran into his room.

In § 87(2)(b) first 911 call (BR 14: audio, BR 15: summary) she reported that she was being attacked at the location. § 87(2)(b) was screaming in the background of the call. § 87(2)(b) explained that she was called to the location for an emergency and has an unruly tenant who was acting up. § 87(2)(b) explained that § 87(2)(b) was following her, kicking her, hitting her, and has a knife. § 87(2)(b) was not currently injured. In her second 911 call (BR 16: audio, BR 15: summary), § 87(2)(b) stated that § 87(2)(b) assaulted her. § 87(2)(b) came after her with a pipe, pushed her into the fridge, and she is hurt.

The remainder of § 87(2)(b)'s (BR 12) and § 87(2)(b) (BR 13) statements were generally consistent with Sgt. Flynn's (BR 17), Sgt. Sinatra's (BR 18), and Captain Tsang's (BR 19 and BR 20) statements as well as the body-worn camera footage. Sgt. Flynn's body-worn camera footage (BR 21: video, BR 08: summary) shows at 1:08 minutes, § 87(2)(b) explaining that § 87(2)(b) attacked her, hit her in the arm with a dumbbell, and pushed her into the refrigerator. § 87(2)(b) explains that another tenant called her with an emergency and that § 87(2)(b) had been unruly. At 1:40 minutes, Sgt. Flynn confirms with § 87(2)(b) that § 87(2)(b) hit her with a dumbbell in the arm. § 87(2)(b) lets the officers into the side of the home using a key. At 2:35 minutes, Sgt. Flynn enters the home and goes upstairs into the kitchen. At 3:08 minutes, PO Dorema knocks on § 87(2)(b)'s door to his private living space and asks him to come speak to them. § 87(2)(b) does not exit the apartment, and at 4:44 minutes, Sgt. Flynn asks § 87(2)(b) to come to the door. At 5:25 minutes, § 87(2)(b) explains that her other tenant calls her all the time because § 87(2)(b) leaves the oven on and leaves his room door open to try and get heat. At 6:15 minutes, Sgt. Flynn and PO Dorema ask § 87(2)(b) if she needs medical attention, and she agrees to see EMS.

At 7:40 minutes, Sgt. Flynn asks § 87(2)(b) whether she has a key to § 87(2)(b)'s private living space, and she provides it. At 9:35 minutes, Sgt. Flynn enters the front room of § 87(2)(b)'s living space. § 87(2)(b) is in his bedroom which is behind another closed door. Sgt. Flynn (BR 17) explained that it was his understanding that this room was a living room and common area within the apartment. At 12:23 minutes (BR 21: video, BR 08: summary), § 87(2)(b) explains to Sgt. Flynn that she came to the location and informed § 87(2)(b) that he cannot leave the oven open as the heat was on. She states that someone else lives on that floor and she is currently in court to get § 87(2)(b) evicted because he has not signed the lease. § 87(2)(b) got in her face and pushed her into the refrigerator while holding the handle of a dumbbell weight which she believed was a pipe at the time. § 87(2)(b) attempted to leave, and § 87(2)(b) put his hand out to prevent her. § 87(2)(b)

§ 87(2)(b) had her arm up because she was holding her phone. She tried to push § 87(2)(b)'s hand and § 87(2)(b) stated that she touched him. § 87(2)(b) reiterates that § 87(2)(b) pushed her while holding the dumbbell, that he stated he would "beat her ass," and he raised it. At 15:40 minutes, Sgt. Flynn requests ESU for a barricaded perpetrator. Sgt. Flynn explained (**BR 17**) that he called ESU because there was a perpetrator of a crime barricaded behind a door who refused to come out. When asked whether there was any reason why he did not need a warrant to go inside, Sgt. Flynn stated, "I'm not sure." A criminal complaint report had not been prepared at this point.

At 42:14 minutes, Det. Donaldson walks up the stairs carrying a shield. Det. Donaldson asks if it is just § 87(2)(b) in the bedroom and Sgt. Flynn says yes. At 52:00 minutes, Captain Tsang arrives on scene. Captain Tsang asks if anyone else is there and Sgt. Flynn explains that the landlord is in the other room. Captain Tsang asks for prior emotionally disturbed persons history and Sgt. Flynn says § 87(2)(b) has one prior for hearing voices and one prior arrest for theft of service. At 53:47 minutes, Sgt. Flynn informs Captain Tsang that TARU and the negotiating team are notified. Captain Tsang places a phone call and relays the information to whomever he is speaking.

Sgt. Sinatra's body-worn camera footage (**BR 22: video, BR 11: summary**) shows that he arrived on scene approximately thirty minutes after Det. Donaldson. At 1:50 minutes, Sgt. Sinatra walks up the stairs to § 87(2)(b)'s unit. Captain Tsang is at the top of the stairs. Sgt. Sinatra asks Captain Tsang, "We know he's an EDP, EDP history?" Captain Tsang says, "He has history from last year." Sgt. Sinatra says, "And he threatened to kill his..." Captain Tsang says, "All we know is he threatened the landlord with a pipe and threatened to push her." At 2:45 minutes, Sgt. Sinatra uses a tool to make a hole in § 87(2)(b)'s door. Sgt. Sinatra and the ESU officers on scene continue to try to get § 87(2)(b) to come out of his room until 17:10 minutes. During this time ESU wedges the door with a tool. At 17:10 minutes, § 87(2)(b)'s door fully opens, ESU officers step inside, § 87(2)(b) comes out, and is handcuffed. Sgt. Sinatra explained (**BR 18**) he put a hole in the door to get a visual on § 87(2)(b) to make sure he was not harming himself or a threat to the officers as § 87(2)(b) had already made a threat to harm other people in the building and a threat to kill somebody.

Det. Donaldson's body-worn camera footage (**BR 23: video, BR 10: summary**) shows at 48:10 minutes that he and Det. Geslak enter § 87(2)(b)'s bedroom. § 87(2)(b) is directed out of the bedroom. Det. Geslak checks the closet and Det. Donaldson and Det. Geslak check under the bed as if looking for another person then exit the room. Sgt. Sinatra explained (**BR 18**) that this was a safety sweep to make sure no one else harmed inside.

Sgt. Flynn stated (**BR 17**) § 87(2)(b) was arrested and removed to the hospital for any possible injuries and a psychiatric evaluation due to the prior dispute with the other tenant and leaving a gas oven on for an extended period of time, which did not factor into the need to get § 87(2)(b) out of his room immediately. The only reason for needing him out of his room immediately was for the arrest for the assault. Sgt. Flynn submitted an unusual occurrence report (**BR 24**) in regards for a barricaded perpetrator.

Sgt. Sinatra stated (**BR 18**) that Captain Tsang had informed him that § 87(2)(b) was an emotionally disturbed person and had threatened to kill someone in the building. Because § 87(2)(b)'s behavior was extremely erratic, meaning he was screaming, yelling, and worked up, and Sgt. Sinatra was told § 87(2)(b) had a previous psychiatric history it was his opinion that § 87(2)(b) needed to be removed immediately for psychiatric evaluation as he was clearly a danger to himself and others. § 87(2)(b)'s arrest did not factor into needing § 87(2)(b) to come out immediately.

Captain Tsang (**BR 19** and **BR 20**) did not tell ESU specifically to damage the door or gain entry but given the exigent circumstances that § 87(2)(b) was dangerous, Captain Tsang authorized ESU to do whatever they needed to do tactically to get § 87(2)(b) into custody. Captain Tsang explained that the exigent circumstances were that § 87(2)(b) was a

barricaded perpetrator who had a weapon when he assaulted his landlord, they did not know whether he had any other weapons. Captain Tsang believed § 87(2)(b) was an imminent threat. A warrant was not needed because they knew § 87(2)(b) was inside that room and there was imminent danger because he had just assaulted his landlord and likely still had the weapon. Captain Tsang never interacted with § 87(2)(b) so he could not speak to whether he believed § 87(2)(b) was an emotionally disturbed person.

In Payton v. New York, 445 U.S. 573 (1980) (**BR 25**), the court found that absent exigent circumstances, officers are not permitted to enter a home to make an arrest without a warrant even when they have probable cause. In People v. Levan, 62 N.Y.2d 139 (1984) (**BR 26**), the court found that police may not, absent exigent circumstances or consent, enter a suspect's home to make a warrantless arrest. In People v. McBride, 14 N.Y. 3d 440 (2010) (**BR 27**), the court acknowledged the following factors in determining whether exigent circumstances are present: 1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause . . . to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.

In People v. Rodriguez, 77 A.D. 3d 280 (2010) (**BR 28**), the court found that officers were permitted to make a warrantless entry of a premises when the officers reasonably believed that there was an emergency which required immediate assistance for the protection of life or property, and that there was a reasonable basis to associate the premises with the emergency at hand.

In Onderdonk v. State 648 N.Y.S2d 214 (1996) (**BR 29**) the court found that officers may damage property only if it is reasonably necessary to carry out their duties.

In People v. Green, 103 A.D2d 362 (1984) (**BR 30**), the court found that under certain circumstances, immediately following an arrest, law enforcement officers without a warrant may be permitted to conduct a security check -- a very quick and limited pass through the premises to check for third persons who may pose a threat to the officers or members of the public.

§ 87(2)(g)

. Therefore, it is recommended that **Allegations A and D** be closed *within NYPD guidelines*.

§ 87(2)(g)

. Therefore, it is recommended that **Allegations C and E** be closed as *within NYPD guidelines*.

Allegation (B) Discourtesy: Detective Daniel Donaldson spoke discourteously to § 87(2)(b)

Det. Donaldson's statement (**BR 31**) was consistent with his body-worn camera footage. Det. Donaldson's body-worn camera footage (**BR 23: video, BR 10: summary**) shows at 27:39 minutes, Det. Donaldson outside of § 87(2)(b)'s bedroom holding a shield against the door. Det. Donaldson is trying to explain that they are there today because of a new complaint. § 87(2)(b) is on the other side of the door speaking continuously about a prior complaint involving § 87(2)(b). Det. Donaldson tells § 87(2)(b), "Listen to me, listen." § 87(2)(b) yells, "Stop!" and Det. Donaldson says, "Shut the fuck up, that's an old complaint this is a new complaint I don't know what you're not getting about this."

Det. Donaldson explained (**BR 31**) that § 87(2)(b) was talking in circles, talking over him, and calling other people and a lawyer on the phone. Det. Donaldson told § 87(2)(b) to “Shut the fuck up,” in an effort to change the tactic by being more aggressive to bring § 87(2)(b) back to the conversation and to focus him which did not work in getting § 87(2)(b) to cooperate. Det. Donaldson considered the situation to be stressful and dangerous because he did not know whether § 87(2)(b) had any weapons, he did not know whether § 87(2)(b) was emotionally disturbed as he was coherent but acting irrational, he could not see inside, even if there was a hole, he would have limited view, and they were going into an unknown room.

According to the Department Advocate’s Office, Det. Donaldson retired from the NYPD on October 28, 2023 (**BR 32**).

Because Det. Donaldson is no longer a member of the NYPD it is recommended that **Allegation B** be closed as *miscellaneous – subject retired*.

Allegation (F) Abuse of Authority: Captain Mo Tsang improperly used his body-worn camera.

It was undisputed that Captain Tsang did not activate his body-worn camera while he was on scene supervising during this incident. Captain Tsang stated (**BR 19** and **BR 20**) that he did not activate his body-worn camera because by the time he responded, all his subordinates on scene were recording with body-worn camera and he himself never interacted with § 87(2)(b).

NYPD Patrol Guide procedure 212-123 (**BR 33**) states that it is mandatory to activate body-worn camera prior to engaging in any police action, law enforcement or investigative activity, and to record any interactions that escalate to become adversarial as well as arrests until the prisoner is lodged at the command for arrest processing.

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it is recommended that **Allegation F** be *substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two additional CCRB complaints and named a victim in six allegations (**BR 34**).
 - § 87(2)(b)
- Sgt. Flynn has been a member of service for 10 years and named a subject in two additional CCRB complaints and two allegations, neither of which were substantiated.
 - § 87(2)(g)
- Sgt. Sinatra has been a member of service for 16 years and named a subject in 16 additional CCRB complaints and 42 allegations, nine of which were substantiated.
 - 201506484 involved substantiated allegations of refusal to provide name and shield number and a vehicle search. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.
 - 201506493 involved substantiated allegations of physical force, property damage, refusal to provide name and shield, search of person, and vehicle search. The Board recommended charges and the NYPD imposed forfeiture of 10 vacation days.
- Det. Donaldson retired from the NYPD on October 28, 2023.
- Captain Tsang has been a member of service for 14 years and named a subject in one additional active CCRB complaint and six allegations, none of which have been substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 5, 2023, the New York City's Comptroller's Office has no record of a Notice of Claim being filed regarding this incident (**BR 35**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 11

Investigator:	<u>Kelly Lyon</u>	<u>SI Kelly Lyon</u>	<u>1/30/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>06/16/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date